



CHAPTER clxxiii.

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the School Burial Ground Wesleyan Place of Worship and Trust Property at Hazel Grove in Bosden in the County of Chester. A.D. 1913.
[15th August 1913.]

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and twelve have reported that they have approved and certified a scheme for the application or management of the charity consisting of the School Burial Ground Wesleyan Place of Worship and Trust Property at Hazel Grove in Bosden in the county of Chester comprised in the following instruments or one of them:—

Indenture dated the fifth day of April one thousand eight hundred and twenty-four;

Indenture dated the thirteenth day of May one thousand eight hundred and seventy-two;

Indenture dated the twelfth day of March one thousand eight hundred and seventy-five;

Indenture dated the sixth day of March one thousand eight hundred and ninety-five; and

Order of Charity Commissioners dated the second day of January one thousand nine hundred and twelve extending the Charitable Trusts Acts 1853 to 1894 to the above-mentioned charity:

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

[*Price 3d.*]

[Ch. clxxiii.] *Bosden Wesleyan Trust Property* [3 & 4 GEO. 5.]
Charity Scheme Confirmation Act, 1913.

A.D. 1913. — Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Confirmation of scheme. 1. The said scheme is hereby confirmed Provided always that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners.

Short title. 2. This Act may be cited as the Bosden Wesleyan Trust Property Charity Scheme Confirmation Act 1913.

SCHEDULE.

A.D. 1913.

*Scheme for the Application or Management of the School
Burial Ground Wesleyan Place of Worship and Trust Property
at Hazel Grove in Bosden in the County of Chester.*

1. The above-mentioned charity consisting of the above-mentioned school burial ground Wesleyan place of worship and trust property with the appurtenances shall be held henceforth by the Trustees thereof upon such and the same trusts and to and for such and the same ends and purposes and with under and subject to such and the same powers provisoes declarations and agreements (so far as the same may be applicable and capable of taking effect) as are expressed declared and contained in and by a certain Indenture of Release bearing date the 3rd of July 1832 and made between John Sutcliffe and 14 others of the first part The Reverend George Marsden of the second part and James Brown of the third part and enrolled in the High Court of Chancery on the 25th of July 1832 being the Trust Deed for the settlement of the Wesleyan Methodist Chapel at Skircoat in the parish of Halifax and county of York and usually known or distinguished as "The Wesleyan Chapel Model Deed" but so nevertheless that the said premises shall (save as herein-after provided) be held subject to the restriction following viz. that it shall not be lawful for the Trustees (notwithstanding anything in the said Model Deed contained) to make or grant otherwise than with the express authority of Parliament or with the previous sanction of the Charity Commissioners or of a court of competent jurisdiction any sale exchange mortgage or charge thereof or any lease thereof in reversion after more than 3 years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding 21 years:

Provided that the aforesaid restriction shall not apply as regards any building forming part of the premises which for the time being is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bonâ fide used as a place of meeting for religious worship or as regards such other property (if any) of the charity as by virtue of any provision of the Charitable Trusts (Places of Religious Worship) Amendment Act 1894 may for the time being be exempted from the jurisdiction conferred by the Charitable Trusts Acts 1853 to 1894.

[Ch. clxxiii.] *Bosden Wesleyan Trust Property* [3 & 4 GEO. 5.]
Charity Scheme Confirmation Act, 1913.

A.D. 1913.
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2. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any provisions of this scheme as if those provisions had been made by a founder in the case of a charity having a founder.

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